CHAPTER 4: Salient Features of the Constitution

The Indian Constitution is unique in its contents and spirit. Though borrowed from almost every Constitution of the world, the Constitution of India has several salient features that distinguish it from the Constitutions of the other countries.

It should be noted at the outset that a number of original features of the Constitution (as adopted in 1949) have undergone a substantial change, on account of several amendments, particularly 7th, 42nd, 44th, 73rd, 74th, 97th and 101st Amendments. In fact, the 42nd Amendment Act (1976) is known as 'Mini-Constitution' due to the important and large number of changes made by it in various parts of the Constitution. However, in the *Kesavananda Bharati* case[1] (1973), the Supreme Court ruled that the constituent power of Parliament under Article 368 does not enable it to alter the 'basic structure' of the Constitution.

SALIENT FEATURES OF THE CONSTITUTION

The salient features of the Constitution, as it stands today, are as follows:

1. Lengthiest Written Constitution

Constitutions are classified into written, like the American Constitution, or unwritten, like the British Constitution. The Constitution of India is the lengthiest of all the written Constitutions of the world. It is a very comprehensive, elaborate and detailed document.

Originally (1949), the Constitution contained a Preamble, 395 Articles (divided into 22 Parts) and 8 Schedules. Presently, it consists of a Preamble, about 470 Articles (divided into 25 Parts) and 12 Schedules. The various amendments carried out since 1951 have deleted about 20 Articles and one Part (VII) and added about 95 Articles, four Parts (IVA, IXA, IXB and XIVA) and four Schedules (9, 10, 11 and 12). No other Constitution in the world has so many Articles and Schedules[2].

The Parts, Important Articles and Schedules of the Constitution of India are mentioned in Tables 4.1, 4.2 and 4.3 respectively.

Four factors have contributed to the elephantine size of our Constitution. They are:

1. Geographical factors, that is, the vastness of the country and its diversity.
2. Historical factors, e.g., the influence of the Government of India Act of 1935, which was bulky.
3. Single Constitution for both the Centre and the states.
4. Dominance of legal luminaries in the Constituent Assembly.

The Constitution contains not only the fundamental principles of governance, but also detailed administrative provisions. Further, those matters which in other modern democratic countries have been left to the ordinary legislation or established political conventions have also been included in the constitutional document itself in India.